IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

TUESDAY, THE FIFTH DAY OF MAY
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE J SREENIVAS RAO

CRLP.Nos.5981 AND 5733 OF 2026

CRLP NO: 5981 OF 2026

Between:

Sannidanam Suresh, S/o. Sannidanam Venkata Ramana Aged about 39 years, Occ.Police Officer R/o. H.No. H.No.1-93, B.C. Colony Suryapet District

.....PETITIONER/ACCUSED NO 2

AND

1. The State of Telangana, Rep. by its Public Prosecutor High Court at Hyderabad Through P.S. Kukatpally **.....RESPONDENT/COMPLAINANT**
2. xxxxx, xxxx

...RESPONDENT/DEFACTO -COMPLAINANT

Petition under Section 528 of BNSS praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased to quash the FIR in Crime No. 482 of 2026 dated 01-04-2026 registered by PS Kukatpally against Petitioner/Accused No.1, for the offence's U/S 69, 352 of BNS, Sec. 3(2)(V) & Sec. 3(1) (r) of SC/St (POA) Act, on such terms and conditions as this Hon'ble Court deems fit and proper

I.A. NO: 2 OF 2026

Petition under Section 528 of BNSS praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased be pleased to grant interim stay of all further proceedings in Crime No. 482/2026, against Petitioner/Accused No.1, registered by P.S Kukatpally, pending disposal of main criminal petition.

This Petition coming on for hearing, upon perusing the Memorandum of Grounds of Criminal Petition and upon hearing the arguments of Sri L HARISH , Advocate for the Petitioner and the SRI. JITHENDER RAO VEERAMALLA, Additional Public Prosecutor on behalf of the Respondent No.1 and of Sri KILARU Advocate for the Respondent No.2

CRLP NO: 5733 OF 2026

Between:

Smt. Sannidanam Udaya Bharati, W/o. Sannidanam Suresh Aged about 32 years, Occ. House wife. R/ o. H.No. 1-93, B.C. Colony Suryapet District.

.....PETITIONER/ACCUSED NO 2

AND

1. The State of Telangana, Rep. by its P.P, High Court at Hyderabad Through P.S. Kukatpally **.....RESPONDENT/COMPLAINANT**
2. XXXXXX, XXXXXXX

.....RESPONDENTDEFACTO-/COMPLAINANT

Petition under Section 528 of BNSS praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased to quash the FIR in Crime No. 482 of 2026 dated 01-04-2026 registered by PS Kukatpally against Petitioner/Accused No.2, for the offence's U/S 69, 352 of BNS, Sec. 3(2)(V) 86 Sec. 3(1) (r) of SC/St (POA) Act, on such terms and conditions as this Hon'ble Court deems fit and proper

I.A. NO: 1 OF 2026

Petition under Section 528 of BNSS praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased to grant interim stay of all further proceedings in Crime No. 482/2026, against Petitioner/Accused No. 2, registered by P.S Kukatpally, pending disposal of main criminal petition

This Petition coming on for hearing, upon perusing the Memorandum of Grounds of Criminal Petition and upon hearing the arguments of Sri L HARISH , Advocate for the Petitioner and the SRI. JITHENDER RAO VEERAMALLA, Additional Public Prosecutor on behalf of the Respondent No.1 and of Sri KILARU RAMA RAO, Advocate for the Respondent No.2

The Court made the following: COMMON ORDER

HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

THE HONOURABLE SRI JUSTICE J. SREENIVAS RAO

CRIMINAL PETITION Nos. 5981 and 5733 of 2026

DATE:05.05.2026

Between :

Sannidanam Suresh

....Petitioner in Crl.P.No.5981 of 2026/
Accused No.1

Smt. Sannidanam Udaya Bharati

.....Petitioner in Crl.P.No.5733 of 2026/
Accused No.2

AND

The State of Telangana and another

....Respondents

: COMMON ORDER :

These Criminal Petitions have been filed by the petitioners/accused Nos.1 and 2 respectively seeking to quash the proceedings in FIR No.482 of 2026 of Kukatpally Police Station, Cyberabad Commissionerate, for the offences punishable under Sections 69 and 352 of the Bharatiya Nyaya Sanhita, 2023 (for short 'the BNS') and Sections 3(2)(v) and 3(1)(r) of the SCs/STs (POA) Act, 1989 (for short 'the Act'). Hence, both the cases are clubbed together and disposed by way of this common order.

2. **Brief facts of the case:**

On 01.04.2026 at about 20:15 hours, respondent No.2 lodged the complaint she is a woman constable of the 2020 batch, who had reported for duty at Kukatpally Police Station on 30.12.2020 and was assigned to work as a writer under accused No.1, the then Sub-Inspector of Police, Kukatpally. During her duty, accused No.1 used to contact her personally through frequent calls and messages and, despite her disinterest, followed her and tracked her movements. In 2022, during bandobust duty at Chittaramma Temple, Kukatpally, accused No.1 allegedly took her inside the temple, applied vermilion on her forehead and told that their marriage was completed and forcibly kissed her in public, and thereafter subjected her to continuous physical and mental harassment, compelling her into a relationship through threats and emotional pressure. To avoid his harassment she went on earned leave for two months and despite his transfer in February 2023, he continued to visit her residence and harassed her. On 30.11.2023, after election duty, he allegedly traced her at her colleague's residence and forcibly had physical relation with her on the promise of marriage, resulting in pregnancy, and repeatedly compelled her to undergo abortions. He continued such conduct, harassing her through calls, video calls, and other means, and caused to behave as a psycho and physically intimidate her

and in September 2025 he stated that he will marry her and sort out his troubles and made her to consume pills for abortion. Subsequently, he refused to marry her citing caste differences and social reasons. The complainant later came to know through accused No.2, who is the wife of accused No.1, that he was already married and having children. She further stated that accused No.2 made a phone call, quarreled with her and abused her and her family members in the name of their caste. The complainant claims to possess supporting recordings, messages, and medical records. Therefore, she requested to take necessary action against accused Nos.1 and 2. Basing upon the above said complaint, Crime No.482 of 2026 was registered.

3. Heard Mr. L.Harish, learned counsel for the petitioners, Mr. Madiraju Srinivasa Rao, learned counsel, representing Mr. Rama Rao Kilaru, learned counsel for respondent No.2/*de-facto* complainant/victim and Mr. Jithender Rao Veeramalla, learned Additional Public Prosecutor for respondent No.1-State.

4. **Submissions of learned counsel for the petitioners:**

4.1 Learned counsel for the petitioners submitted that the petitioners have not committed the alleged offences and they were falsely implicated in this crime. Even according to the allegations made in the complaint, the ingredients of the offences under

Sections 69 and 352 of the BNS and Sections 3(2)(v) and 3(1)(r) of the Act are not attracted against accused No.1 and offences under Section 352 of the BNS and Sections 3(2)(v) and 3(1)(r) of the Act are not attracted even against accused No.2. Respondent No.2 implicated the petitioner in Crl.P. No.5733 of 2025 as accused No.2 only on the ground that she is the wife of accused No.1 and there are no allegations, much less specific allegations, levelled against her. The only allegation levelled in the complaint is that accused No.2 abused respondent No.2 over the phone in the name of her caste. He further submitted that no specific allegation has been made against accused No.2 that she used any particular caste-related words. Further, the alleged abuse of respondent No.2 in the name of her caste does not come within the public view. The allegations levelled in the complaint do not attract the ingredients of the offences under Sections 3(2)(v) and 3(1)(r) of the Act, including the offence under Section 352 of the BNS. Hence, continuation of the proceedings against accused No.2 is clear abuse of the process of law.

4.2 He further submitted that even according to the allegations levelled in the complaint, *de-facto* complainant is having relationship with accused No.1 since 2022, which is a consensual relationship, and she lodged the complaint on 01.04.2026.

Respondent No.2 is having knowledge that accused No.1 is having wife and children and his marriage is in existence. Accused No.1 developed physical relationship with respondent No.2 and she insisted him to marry her, and when he refused the same, she lodged the present complaint by making omnibus allegations. There is no allegation against accused No.1 that he abused respondent No.2 in the name of her caste. The only allegation levelled against him is that he refused to marry her on the ground that his caste and her caste are different, which does not fall within the ambit of Sections 3(2)(v) and 3(1)(r) of the Act. Therefore, the ingredients of the offence under Section 69 of the BNS and also the offences under Sections 3(2)(v) and 3(1)(r) of the Act are not attracted against accused No.1. Hence, continuation of the proceedings against the petitioners is a clear abuse of the process of law.

4.3 In support of his contention, he relied upon the following judgments;

i) **Hitesh Verma v. The State of Uttarakhand and another[1];**

ii) **Keshaw Mahto @ Keshaw Kumar Mahto v. State of Bihar and another[2]; and**

[1] 2020 Supreme (SC) 653

iii) **Karuppudayar v. State rep. by the Deputy Superintendent of Police, Lalgudi Trichy and others[3].**

iv) **Order in C.R.M.(A) 4050 of 2025;**

5. Submissions of learned counsel for respondent No.2:

5.1 Learned counsel for respondent No.2 submitted that accused Nos.1 and 2 have committed a grave offence against respondent No.2 and there are specific allegations levelled against them in the complaint and accused No.1 harassed respondent No.2 by using his official power and forcibly participated in sexual intercourse with her with a false promise that he would marry her. When respondent No.2 conceived, he used to force her to consume the pills for getting abortion stating that if it is open up, their jobs will be at risk. There is another specific allegation against accused No.1 that he is behaving like a psycho and used to harass her by making phone calls, video calls and messages and when she did not respond for the same, he used to place an order in Blinkit with cash on delivery scheme to her. When she sought clarity, accused No.1 replied that he would not marry her due to a caste difference

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[2] 2026 Supreme (SC) 76
[3] 2025 INSC 132

and further stated that, as she is a Constable, whereas he is Sub-Inspector of Police, he could not acknowledge her in his public life.

5.2 He further submitted that there is another allegation against accused No.2 that she made a phone call to respondent No.2 and questioned her as to why she is chasing her husband and abused her in the name of her caste. The Investigating Officer recorded the statements of respondent No.2 and other five witnesses. Respondent No.2/*de-facto* complainant in her statement specifically mentioned the words, which were used by the accused, and also furnished the electronic data i.e. Whats App messages, call data and other electronic evidence, to the Investigating Officer and the investigation is under progress. The other witnesses also specifically mentioned the role of accused. The allegations levelled in the complaint attracts all the ingredients of the offences levelled against them and the said offences are cognizable offences and the investigation is very much required and therefore, accused Nos.1 and 2 are not entitled to seek for quashing the proceedings against them and the same are liable to be dismissed.

6. **Submissions of the learned Additional Public Prosecutor:**

6.1 Learned Additional Public Prosecutor has reiterated the submissions made by the learned counsel for respondent No.2. In addition to the same, he submitted that accused No.1 while

discharging his duties as Sub-Inspector of Police, by using his official position, he harassed respondent No.2, forcibly participated in sexual intercourse with her and developed physical relationship, even when she refused, with a false promise that he would marry her. When respondent No.2 conceives, he used to force her to consume pills for getting abortion. There are specific allegations levelled against accused Nos.1 and 2 that they have abused respondent No.2 in the name of her caste. The investigation is under progress. Hence, the petitioners are not entitled to seek for quashing the proceedings at the threshold.

Analysis:

7. Having considered the rival submissions made by the respective parties and upon perusal of the material available on record, it reveals that accused No.1 is a Sub-Inspector of Police and respondent No.2 is a Police Constable and both are worked at Kukatpally Police Station and the S.H.O. instructed her to work as a Writer under the Kukatpally Sector in-charge Sub-Inspector of Police. A perusal of the complaint, it reveals that accused No.1 by using his official position, frequently he used to make phone calls and messages to respondent No.2. Though respondent No.2 avoiding the same, accused No.1 used to follow her by tracing her location and when she was in bandobust duty at Chitaramma

Temple, Kukatpally, accused No.1 took her into the temple and affixed vermilion on her forehead, symbolizing as if they are married and when she was going out of temple, he caught hold and kissed her in public and asked her not to leave him and stay with him. There are specific allegations levelled against accused No.1 that he used to harass respondent No.2 physically by saying that he is her husband. Due to the said harassment, she applied earned leave for two months and when she did not report in police station and stayed at home, accused No.1 used to make rounds to her house and when she ignores him, he used to hurt himself. On 30.11.2023 when she went to the house of her colleague Constable namely Kavya at Balaji Nagar, Kukatpally, accused No.1 traced her location, went there and stated that he is ready to speak with elders and will marry her and forcibly participated in sexual intercourse with her. Due to which, she had conceived and accused No.1 had given pills for getting abortion. When respondent No.2 demanded accused No.1 to marry her, he refused to marry her on the ground that she belongs to madiga caste and that she is a Constable whereas he is Sub-Inspector of Police, and stated that he cannot show her as his wife in his public life.

8. Learned counsel for respondent No.2 placed statements of the witnesses i.e. LWs.1 to 6, wherein they specifically mentioned

the role of the petitioners. Respondent No.2 in her statement specifically mentioned the abusive words used by accused Nos.1 and 2 in the name of her caste. There are specific allegations levelled against accused No.1 in the complaint that by using his official position, he intimidated respondent No.2 for sexual intercourse with a false promise of marrying her. The allegations levelled in the complaint *prima facie* reveal that accused Nos.1 and 2 intimidated and insulted the *de-facto* complainant on the basis of her caste.

9. On perusal of the written instructions furnished by the Assistant Commissioner of Police, Balanagar Division, Cyberabad Commissionerate, it reveals that the Investigating Officer has collected the electronic evidence in the form of call data and messages sent by petitioners to respondent No.2 and the investigation is under progress.

10. In **Hitesh Verma** (supra), the accused had approached the High Court of Uttarakhand at Nainital seeking to quash the proceedings of charge sheet as well as the summoning order dated 25.06.2020. When the said criminal petition was dismissed, aggrieved by the same, the petitioner therein had approached the Hon'ble Apex Court. In **Keshaw Mahto @ Keshaw Kumar Mahto** (supra), the party had approached the High Court of Judicature at

Patna questioning the cognizance and summoning order dated 09.10.2020 passed by the trial Court and when the said petition was dismissed, the party had approached the Hon'ble Apex Court. In **Karuppudayar** (supra) also, the appellant therein had approached the High Court of Madras seeking to quash the proceedings in Spl.S.C.No.7 of 2022.

11. The reliance placed by the petitioners on **Hitesh Verma** (supra), **Keshaw Mahto** supra) and **Karuppudayar** (supra) is not applicable to the facts and circumstances of these cases. In these cases, the petitioners have approached the Court seeking to quash the proceedings after filing final report and after taking cognizance against them. Whereas in the present case, there are specific allegations that petitioner No.1 by using his official power forcibly participated in sexual intercourse and developed physical relationship by giving false promise of marrying her and behaved as a psycho and the petitioners abused respondent No.2 in the name of her caste. Whether the allegations levelled in the complaint are true or not, has to be revealed during the course of investigation, especially the investigation is at nascent stage.

12. The Order in C.R.M.(A) 4050 of 2025 relied upon by the learned counsel for the petitioners is also not applicable to the facts and circumstances of the case on the ground that the

petitioner therein had approached the Court for grant of anticipatory bail.

13. It is relevant to mention that in **State of Haryana v. Bhajan Lal**[4], the Hon'ble Supreme Court delineated the limited scope of the High Court's jurisdiction under Article 226 of the Constitution and Section 482 Cr.P.C. to quash criminal proceedings, holding that such power may be exercised only in exceptional cases where the allegations, even if taken at face value, do not disclose any offence, are inherently improbable, legally barred, or manifestly mala fide, while cautioning that the categories so enumerated are illustrative and the power must be exercised sparingly. The said principles were reiterated by the Hon'ble Apex Court in **Neeharika Infrastructure (P) Ltd. v. State of Maharashtra and others**[5];, wherein it was emphasised that the police have a statutory right and duty to investigate cognizable offences and that Courts should not interdict investigation at the threshold unless no cognizable offence is disclosed on a plain reading of the FIR; the FIR is not expected to be an encyclopedia of all facts, and criminal proceedings ought not to be scuttled at their nascent stage.

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[4] 1992 Sup (1) SCC 335
[5] (2021) 19 SCC 401

14. It is already stated supra that there are specific and serious allegations made in the complaint against the petitioners, which *prima facie* discloses commission of cognizable offences, and the investigation is still under progress and therefore, interference at the threshold would be impermissible and this Court is of the considered view that the present case does not fall within the ambit of rarest of the rare case to exercise the powers conferred under Section 528 of the BNSS.

15. For the foregoing reasons as well as the precedent decisions, this Court does not find any grounds to quash the proceedings in F.I.R.No.482 of 2026 of Kukatpally P.S., Cyberabad Commissionerate against the petitioners at this stage.

16. Accordingly, both the criminal petitions are dismissed.

Miscellaneous applications, pending if any, shall stand closed.

//TRUE COPY//

SD/- MOHD.ISMAIL
DEPUTY REGISTRAR

SECTION OFFICER

One Fair Copy to the Hon'ble Sri Justice J SREENIVAS RAO
(for His Lordship's kind perusal)

To,

1. The XII Additional Junior Civil Judge Cum Additional Metropolitan Magistrate Malkjgiri at Prashanth Nagar Kukatpally Cyberabad
2. The Station House Officer, Kukatpally Police Station Kukatpally Cyberabad

3. One CC to SRI. L HARISH Advocate [OPUC]
4. Two CCs to PUBLIC PROSECUTOR High Court for the State of Telangana, at Hyderabad [OUT]
5. One CC to SRI KILARU RAMA RAO, Advocate [OPUC]
6. Two CD Copies

7. Eleven (11) L.R. Copies.
8 The Under Secretary, Union of India, Ministry of Law, Justice and Company Affairs, New Delhi.
9. The Secretary, Telangana High Court Advocates Association Library, High Court Buildings, Hyderabad.
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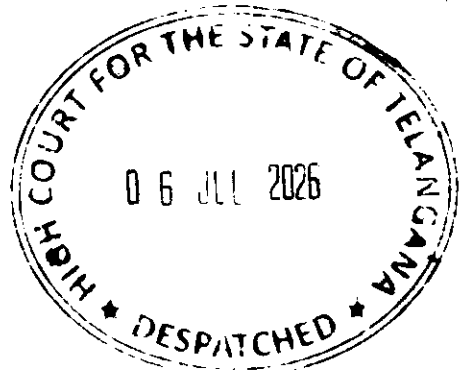
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HIGH COURT

DATED: 05/05/2026

ORDER

CRLP.Nos.5981 AND 5733 OF 2026



DISMISSING THE CRIMINAL PETITIONS

(26) NT
18/6/26.